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NATURE OF PROCEEDINGS: Hearing on Demurrer

The Demurrer is overruled.

BACKGROUND

Plaintiffs Devon Woodfine, Leotha Williamson, Bob Steele, Vonda Rodgers, and Gary Rodgers (Plaintiffs) filed this action against Normandie Community Worship Center (NCWC), Blackgem Properties LLC, Usc Capital LLC, On Par Management, LLC, and Conrad Property Management Inc. (collectively, "Defendants"), alleging that Plaintiffs occupied two units at a residential property Defendants owned and managed and that Defendants failed to repair substandard conditions there.

The causes of action are: (1) Breach of Implied Warranty of Habitability; (2) Tortious Breach of the Implied Warranty of Habitability; (3) Negligence; (4) Intentional Infliction of Emotional Distress; (5) Violation of Civil Code Section 1942.4; (6) Violation of Business and Professions Code Section 17200; and (7) Violation of Los Angeles Municipal Code Article 5.3.

NCWC filed a Demurrer. Plaintiffs filed an Opposition.

LEGAL STANDARD

A party may object by demurrer on the grounds that a pleading "does not state facts sufficient to constitute a cause of action," that it "is uncertain," a term that "includes ambiguous and unintelligible," and that "[i]n an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct." (Code Civ.

Proc., § 430.10, subds. (e), (f), (g).)

The Court treats a demurrer “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law,” and gives “the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

“To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff’s proof need not be alleged.” (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872 (Hart))

“A demurrer does not lie to a portion of a cause of action.” (PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1682 (PH II, Inc.).)

Where a substantive defect in part of a cause of action appears on the face of the pleading, the objecting party may attack that part by a motion to strike, and such use of the motion to strike “should be cautious and sparing.” (Id. at pp. 1682-1683.)

ANALYSIS

I. Collective Allegations

NCWC contends that the Complaint states no cause of action against it because every substantive allegation is directed at “Defendants” as a group, and because no allegation says what NCWC owned or managed, when it did so, or what it is charged with having done. Plaintiffs argue that they allege the same misconduct against each named defendant during that defendant’s own period of ownership or management, and that pleading similar allegations against successive owners does not make the pleading defective. NCWC reiterates the argument on reply.

“Allegations of misconduct directed against one defendant, however, do not state a cause of action against another defendant against whom the allegations of misconduct are not directed.” (Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 410.) NCWC’s reliance on Carter is misplaced. The conduct the plaintiffs there described as elder abuse was attributable exclusively to a skilled nursing center, and they sought to charge a hospital with it. (Id. at pp. 409-410.) Plaintiffs here charge every defendant with the same conduct. No allegation charges conduct to another entity alone and then asks that NCWC answer for it.

Here, the Complaint states a cause of action against NCWC. First, Plaintiffs allege that NCWC owned, managed, and operated the property during a portion, if not all, of the last four years. (Compl., ¶ 5.) Second, they allege that substandard conditions existed at the property and within their units throughout at least the last four years of their tenancies. (Compl., ¶¶ 3-4, 17-18.) Third, they allege that they complained to the owner and management repeatedly over multiple years. (Compl., ¶¶ 19, 23.) Finally, they allege that the owner and management either refused to repair the conditions or made repairs inadequate to correct them. (Compl., ¶¶ 19, 21.) Together, those allegations identify the conduct charged to NCWC and the period in which it is alleged to have occurred. How much of the four years NCWC held the property is an evidentiary matter the Complaint need not allege.

NCWC further contends that the agency, conspiracy, and alter ego allegations are legal conclusions incapable of charging it with the conduct of four other entities. (Compl., ¶¶ 11-12.) The defendant in *Beeler* was named only as a co-conspirator in a clause alleging that others had acted in concert with it, and no fact alleged showed its knowing participation in the fraud. (*Beeler v. West American Finance Co.* (1962) 201 Cal.App.2d 702, 707.) Plaintiffs do not use the agency, conspiracy, and alter ego allegations to hold NCWC answerable for another entity's conduct, and neither does this ruling. Plaintiffs allege that NCWC itself owned and managed the property and itself failed to repair it. (Compl., ¶¶ 5, 14, 19.) Thus, those allegations state a claim against NCWC whatever any other defendant did.

NCWC also argues that a fact pleaded on information and belief must be accompanied by the information leading the pleader to believe it. A “[p]laintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550, quoting *Pridonoff v. Balokovich* (1951) 36 Cal.2d 788, 792.) A pleading asserting the fact and supplying no basis for the belief would not satisfy that rule. (*Id.* at p. 551, fn. 5.) However, Plaintiffs supply that basis, alleging the tenancies and their spans, the conditions they encountered, the complaints they made, the agency inspections, and the citations that followed. (Compl., ¶¶ 3-4, 16-19, 23.)

Thus, the Court concludes that the collective form of the allegations

defeats no cause of action as against NCWC.

II. Uncertainty

NCWC contends that every cause of action is uncertain because the Complaint gives no date for any issuable fact, including the date NCWC acquired or gave up the property, the date any Plaintiff complained to it, and the date of any inspection, citation, or notice. Plaintiffs argue that a habitability plaintiff need not plead the date of every substandard condition, and that the Complaint alleges the span of each tenancy and the conditions that existed during it. NCWC replies that Khoury states no rule that special demurrers for uncertainty are disfavored.

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khoury v. Maly’s of California, Inc (1993) 14 Cal.App.4th 612, 616 (Khoury).)

Here, the Complaint is not so uncertain that NCWC cannot reasonably respond to it. Plaintiffs identify the property and the two units, the span of each tenancy, the conditions alleged to have existed, the complaints they allege they made, and the responses they allege they received. (Compl., ¶¶ 1, 3-4, 17-19, 23.) Moreover, the dates on which particular conditions arose and particular complaints were made are facts discovery will supply.

NCWC argues that without dates neither it nor the Court can tell which claims are timely. It identifies the limitations periods governing tort, contract, and statutory penalty claims. However, the Demurrer asserts no limitations ground and identifies no cause of action it contends is time-barred. It raises the limitations periods to show why the missing dates matter.

NCWC answers in advance that the rule disfavoring uncertainty demurrers should not apply, because the missing facts concern four other entities. However, the dates on which NCWC held and managed the property, and the dates on which it received Plaintiffs’ complaints, are within NCWC’s own knowledge, and those are the omissions the Demurrer presses hardest.

Accordingly, the Demurrer on the ground of uncertainty is overruled as to each cause of action.

III. Warranty of Habitability

NCWC contends that the first cause of action fails because the Complaint never alleges that it was notified of any condition, when it was notified, or that any condition arose or persisted while NCWC held the property. It contends separately that the pleading does not disclose whether the contract sued upon is written, oral, or implied by conduct. Plaintiffs argue that the Complaint describes the substandard conditions that existed while NCWC owned and operated the property, and that the pleading acquaints NCWC with the nature, source, and extent of the claim.

“The elements of such an affirmative claim are the existence of a material defective condition affecting the premises’ habitability, notice to the landlord of the condition within a reasonable time after the tenant’s discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages.” (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1297.)

Here, Plaintiffs sufficiently allege a breach of the implied warranty of habitability. First, they allege materially defective conditions affecting habitability, among them ceiling collapses, sewage backups, water intrusion, vermin infestation, and inoperable heating. (Compl., ¶¶ 17-18, 20-22.) Second, they allege that they notified Defendants and their agents of the conditions and complained persistently over multiple years. (Compl., ¶¶ 19, 23.) Third, they allege that Defendants failed to correct the conditions over that same period. (Compl., ¶¶ 19, 21, 23.) Finally, they allege resulting damage. (Compl., ¶ 33.)

NCWC’s argument is that the notice and the conditions must be tied to its tenure by date. Plaintiffs allege continuing conditions and continuing complaints across a defined period, and they allege that NCWC owned and managed the property during that period. (Compl., ¶¶ 3-5, 17.) Thus, a pleading in that form alleges notice to whoever was the landlord while the conditions persisted.

NCWC’s reliance on Peterson v.

Superior Court (1995) 10 Cal.4th 1185 is misplaced. The Supreme Court there held that the implied warranty of habitability does not support an action for strict products liability against a landlord. The passage NCWC quotes describes what a tenant may reasonably expect, on the way to that holding. (Id.

at pp. 1205-1206.) Moreover, Plaintiffs allege that Defendants and their agents were repeatedly informed of the conditions. (Compl., ¶¶ 19, 23, 37.)

NCWC reads Knight v.

Hallsthammar (1981) 29 Cal.3d 46 (Knight), together with Civil Code section 1466 for the premise that a purchaser's obligation begins on acquisition and that a grantee is bound only during its ownership. Assuming that premise, Plaintiffs allege that NCWC owned and managed the property during a portion of the last four years and that the conditions and the complaints ran throughout that period. (Compl., ¶¶ 3-5, 17, 19.) A landlord bound only during its ownership is bound during the period Plaintiffs allege. The Supreme Court held in Knight that a tenant may raise the defense against a current owner although the uninhabitable conditions first arose under a former owner, because a new owner is already in breach if the premises are uninhabitable when it takes title. (Knight, supra, 29 Cal.3d at p. 56.) On the page NCWC cites, the Supreme Court declined to reach the successor question, holding it unnecessary to decide whether Civil Code section 823 applies to a tenant's affirmative action against a new landlord. (Id. at p. 57.) Nor is a landlord that takes the premises with notice of the condition entitled to additional time to repair it. (Erlach, supra, 226 Cal.App.4th at p. 1297, fn. 8.)

NCWC separately invokes CCP Section 430.10, subdivision (g). Plaintiffs allege that they resided in their units pursuant to a written lease with Defendants. (Compl., ¶ 29.) NCWC replies that the allegation cannot be squared with the earlier allegation that Plaintiffs occupied their units pursuant to an agreement with Defendants or Defendants' predecessors in interest. (Compl., ¶¶ 3-4.) An allegation that a tenancy began under a predecessor and continued under a successor owner describes the succession that the Complaint alleges. That allegation does not contradict the allegation of a written lease, and the form of the contract sued upon can be ascertained from the pleading.

Accordingly, the Demurrer to the first cause of action is overruled.

IV. Tortious Breach

NCWC contends that the second cause of action is a duplicative relabeling of the first and third causes of action, that it pleads no independent tort, and that its punitive damages allegations are conclusory. It contends further that the allegations of intentional conduct identify no one who said anything

to anyone and no date on which it was said. Plaintiffs filed no opposition to this cause of action. NCWC argues on reply that the count adds only recitations of the elements.

“[A] tenant may state a cause of action in tort against his landlord for damages resulting from a breach of the implied warranty of habitability.” (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 918-919 (Stoiber).)

Here, the second cause of action pleads facts that the first does not. Plaintiffs allege that Defendants knew the property was unfit for human occupation, that they repeatedly represented that repairs would be made or had been made when they had not, and that they withheld repairs deliberately to extract rent and increase their cash flow. (Compl., ¶¶ 38-40.) Those allegations describe intentional conduct. The first cause of action alleges none. They also allege conduct and not a characterization of conduct. A representation that repairs would be made, followed by no repair, and a representation that repairs had been made when they had not, are facts. Which employee made which statement on which day is the evidentiary detail a pleading need not carry. (Hart, *supra*, 53 Cal.4th at p. 872.)

NCWC’s remaining objection is that this count repeats what the first and third causes of action already allege. However, a cause of action duplicating another “is not a ground on which a demurrer may be sustained.” (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 890.) The count at issue in Rodrigues incorporated the four counts preceding it and added “nothing to the complaint by way of fact or theory of recovery.” (Rodrigues v. Campbell Industries (1978) 87 Cal.App.3d 494, 501.) The Court of Appeal affirmed as to that count and reversed as to the other four, which pleaded overlapping theories on a single set of facts. (Ibid.) The second cause of action here adds intentional conduct the first does not allege, so it adds both fact and theory.

NCWC also attacks the punitive damages allegations within this cause of action. (Compl., ¶ 42.) However, a demurrer does not lie to that part of it. (PH II, Inc., *supra*, 33 Cal.App.4th at p. 1682.)

Accordingly, the Demurrer to the second cause of action is overruled.

V. Negligence

NCWC contends that the third cause of action alleges no facts establishing

that it owed or breached a duty during any period in which it possessed or controlled the property. It identifies three further defects: that negligence per se is an evidentiary presumption rather than an independent basis of liability, that emotional distress damages are unavailable for purely economic injury and the physical injuries are pleaded only as unspecified injuries and health problems, and that punitive damages are unavailable for negligence. Plaintiffs argue that the negligence allegations stand for the same reasons as the habitability allegations. NCWC replies that the reference to “other damages” leaves it to surmise what Plaintiffs claim.

“Actionable negligence involves a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury.” (United States Liab. Ins. Co. v. Haidinger-Hayes, Inc. (1970) 1 Cal.3d 586, 594.) A landlord's duty of care toward its tenants includes the obligation to maintain the dwelling in the condition state housing law requires. (Civ. Code, §§ 1941, 1941.1.)

Here, Plaintiffs sufficiently allege negligence. First, they allege that NCWC owned, managed, and operated the property and was obliged to maintain it in a habitable and lawful condition. (Compl., ¶¶ 5, 44-45.) Second, they allege that Defendants failed to repair, operate, and maintain it. (Compl., ¶ 46.) Finally, they allege injuries and health problems caused or exacerbated by the conditions. (Compl., ¶¶ 17, 47.)

NCWC's three further objections attack parts of the cause of action and not the whole of it. Whether the negligence per se allegation states an evidentiary presumption, whether Plaintiffs may recover emotional distress damages on a negligence theory and have pleaded their injuries in enough detail, and whether the pleading supports punitive damages are questions about particular allegations and particular items of relief. Therefore, a demurrer does not lie to any of them. (PH II, Inc., supra, 33 Cal.App.4th at p. 1682.)

Accordingly, the Demurrer to the third cause of action is overruled.

VI. Emotional Distress

NCWC contends that the fourth cause of action alleges no specific act by NCWC, no conduct directed at Plaintiffs, and no severe emotional distress. Plaintiffs argue that the Complaint alleges NCWC knew the probable consequences

of failing to abate the conditions and willfully declined to avoid them. NCWC replies that Plaintiffs identify no fact showing that NCWC knew they would suffer emotional distress.

The elements are “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050 (Hughes), quoting Potter v. Firestone Tire & Rubber Co (1993) 6 Cal.4th 965, 1001 (Potter).)

“It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware.” (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.) A landlord is not exempt from the tort. “[T]he availability of a remedy for breach of implied warranty of habitability does not preclude a tenant from suing his landlord for intentional infliction of mental distress if the landlord’s acts are extreme and outrageous and result in severe mental distress.” (Stoiber, supra, 101 Cal.App.3d at p. 922.)

Here, Plaintiffs sufficiently allege intentional infliction of emotional distress. First, they allege that their units were subject to ceiling collapses, sewage backups, water intrusion, and vermin infestation over a period of years, and that insects crawled onto them while they slept. (Compl., ¶¶ 17-18, 20-22.) Second, they allege that they complained persistently and that Defendants either refused to repair or painted over the damage instead of finding its cause. (Compl., ¶¶ 19, 21, 23.) Third, they allege that Defendants withheld repairs to save money, to intimidate Plaintiffs into not complaining, and to cause them to abandon the property. (Compl., ¶ 50.) Finally, they allege severe mental suffering together with physical injuries and health problems the conditions caused or worsened. (Compl., ¶¶ 17, 51.)

The conduct alleged is directed at these Plaintiffs. They allege that Defendants withheld repairs purposefully to vex, injure, and annoy them, and to force them to vacate the property or to accept substandard premises without further complaint to the authorities. (Compl., ¶ 27.) A refusal to repair undertaken for that purpose is aimed at the tenants and not at the building.

NCWC argues that the acts must be alleged with great specificity. Plaintiffs allege the conditions in each unit, the complaints they made about

them, and the purpose they attribute to Defendants' refusals. (Compl., ¶¶ 18-24, 27, 50.) On comparable allegations the Court of Appeal held that whether the landlord's conduct was outrageous "presents a factual question" and that "it cannot be said as a matter of law that appellant has not stated a cause of action." (Stoiber, supra, 101 Cal.App.3d at p. 922.) NCWC distinguishes Stoiber on the ground that the plaintiff there pleaded specific conditions, repeated notice to the landlord, a refusal to act, and an order from the health department. Plaintiffs plead each of those things, alleging the conditions in their units, the complaints they made over multiple years, the refusals that followed, and inspections by the Los Angeles Housing Department and the Los Angeles Department of Public Health that resulted in citations. (Compl., ¶¶ 16-19, 21, 23.)

NCWC argues that generalized anxiety and upset do not meet the standard, which asks for distress "of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it." (Hughes, supra, 46 Cal.4th at pp. 1050-1051.) Plaintiffs allegations meet that standard. They allege rashes, skin eruptions, and other ailments from the infestations, injuries and health problems caused or exacerbated by the conditions, and severe mental suffering. (Compl., ¶¶ 17, 20, 51.)

Accordingly, the Demurrer to the fourth cause of action is overruled.

VII. Notice and Abatement

NCWC contends that the fifth cause of action omits every element that Civil Code section 1942.4 requires and paraphrases the statute without identifying an inspecting agency, a date, a notice, or a demand for rent by NCWC.

Section 1942.4, subdivision (a), provides: "A landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, or issue a three-day notice to pay rent or quit pursuant to subdivision (2) of Section 1161 of the Code of Civil Procedure, if all of the following conditions exist prior to the landlord's demand or notice: [¶] (1) The dwelling substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling. [¶] (2) A public officer or employee who is

responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions. [¶] (3) The conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail. [¶] (4) The conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2."

Statutory causes of action must be pleaded with particularity. (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.) Particularity here means the facts the statute makes a condition of liability. It does not require the evidentiary facts by which those conditions will be proved. (Hart, supra, 53 Cal.4th at p. 872.)

Here, Plaintiffs allege each of the four conditions. First, they allege that the property substantially lacks the affirmative standard characteristics identified in section 1941.1 and meets the definition of substandard housing in Health and Safety Code section 17920.3. (Compl., ¶ 54.) Second, they allege that the Los Angeles Housing Department and the Los Angeles Department of Public Health inspected the property and cited Defendants, and that housing and health inspectors gave Defendants written notice of the obligation to repair after inspecting the premises. (Compl., ¶¶ 16, 55.) Third, they allege that Defendants failed to abate the cited conditions within 35 days and without good cause. (Compl., ¶¶ 16, 56.) Finally, they allege that Plaintiffs did not cause the conditions and that Defendants demanded and collected rent while the conditions remained unabated. (Compl., ¶¶ 16, 55, 57.)

Plaintiffs allege that the inspectors gave written notice "on the dates as alleged herein," and no date appears anywhere in the pleading. (Compl., ¶ 55.) The third condition is defined by reference to the date of service. However, what it requires is that the conditions remained unabated 35 days past service and that the delay lacked good cause, and Plaintiffs allege both. (Compl., ¶¶ 16, 56.) The calendar date is the evidence by which that lapse will be proved.

NCWC further contends that no allegation ties any notice to it. A public officer's written notice is a single event addressed to a particular landlord. Whether NCWC received one is a question of proof. Plaintiffs allege that inspectors gave written notice to the Defendants and that Defendants demanded and collected rent while the cited conditions remained unabated. (Compl., ¶¶

16, 55, 57.) On demurrer the allegation that NCWC was among those notified is taken as true.

Accordingly, the Demurrer to the fifth cause of action is overruled.

VIII. Unfair Competition

NCWC contends that the sixth cause of action borrows its unlawful predicate from the other causes of action and fails with them, and that its independent unfair and fraudulent allegations are conclusions pleaded on information and belief. It contends further that the remedies the cause of action seeks are unavailable and that Plaintiffs lack standing to seek an injunction. Plaintiffs argue that the Complaint alleges NCWC refused necessary repairs for years to save money and increase its cash flow, and that NCWC violated numerous state and local statutes. NCWC replies that the only statutory violations pleaded are the fifth and seventh causes of action, and that the sixth fails with them.

Unfair competition means “any unlawful, unfair or fraudulent business act or practice.” (Bus. & Prof. Code, § 17200.) The three are independent bases of liability, and a cause of action resting on all three states a claim if any one of them does. The predicate causes of action survive the Demurrer. The unlawful prong therefore states a claim, and whether the unfair and fraudulent allegations would independently suffice does not determine whether the sixth cause of action survives. Plaintiffs allege that Defendants rented substandard, untenable, and unlawful housing, that the rental of residential property is a business practice, and that Defendants collected rent that they could not lawfully charge. (Compl., ¶¶ 61-64.)

A plaintiff pleading unfair competition “must state with reasonable particularity the facts supporting the statutory elements of the violation.” (Khoury, *supra*, 14 Cal.App.4th at p. 619.) The demurrer there was properly sustained because the complaint “identifies no particular section of the statutory scheme which was violated and fails to describe with any reasonable particularity the facts supporting violation.” (Ibid.) Plaintiffs here identify the sections. They plead Civil Code sections 1941.1 and 1942.4, Health and Safety Code section 17920.3, and article 5.3 of the Los Angeles Municipal Code. (Compl., ¶¶ 13, 45, 54, 58, 61, 67.)

A private plaintiff has standing where the plaintiff “has suffered injury

in fact and has lost money or property as a result of the unfair competition.” (Bus. & Prof. Code, § 17204.) Plaintiffs allege that they paid rent to Defendants throughout their tenancies. (Compl., ¶¶ 63-65.)

NCWC’s objections to the relief sought go to part of the cause of action and not to the whole of it. Whether Plaintiffs may recover as restitution the whole of the rent paid over their tenancies, whether that demand seeks nonrestitutionary disgorgement that the Unfair Competition Law does not authorize, and whether an injunction would serve a purpose if NCWC no longer holds the property are questions about a remedy. Therefore, a demurrer does not lie to them. (PH II, Inc., supra, 33 Cal.App.4th at p. 1682.)

The standing argument fails on the pleading. The Court of Appeal has affirmed the dismissal of an unfair business practices count seeking injunctive relief where the plaintiff was “not now in possession of any of the properties owned or managed by the defendants.” (Stoiber, supra, 101 Cal.App.3d at p. 928.) Plaintiffs Woodfine, Williamson, and Steele are alleged to reside at the property still. (Compl., ¶¶ 3, 29.) The Rodgers Plaintiffs are alleged to have vacated in May 2024. (Compl., ¶ 4.) Whether the later two Plaintiffs may seek an injunction is a question about one form of relief sought by two of the five, and a demurrer does not lie to that part of the cause of action. (PH II, Inc., supra, 33 Cal.App.4th at p. 1682.)

Accordingly, the Demurrer to the sixth cause of action is overruled.

IX. Tenant Harassment

NCWC contends that the seventh cause of action alleges no bad-faith conduct directed at any specific Plaintiff, that it charges conduct predating the ordinance, and that it demands \$10,000 for each violation without identifying a single violation or its date.

“Tenant Harassment shall be defined as a landlord’s bad faith conduct directed at a specific tenant or tenants that causes the latter detriment or harm.” (L.A. Mun. Code, § 45.33, as amended by Ord. No. 188,416, eff. Dec. 29, 2024.) “‘Bad faith’ refers to willful, reckless, or grossly negligent conduct.” (Ibid.) The enumerated categories of harassment include “[f]ailing to perform and timely complete necessary repairs and maintenance required by Federal, State, County, or local housing, health, or safety laws.” (Ibid.)

Here, Plaintiffs sufficiently allege tenant harassment. First, they allege that Defendants failed to perform and timely complete necessary repairs at the property. (Compl., ¶¶ 67-68.) Second, they allege that Defendants knew of the substandard conditions, had the means and opportunity to abate them, and refused. (Compl., ¶¶ 23-24.) Third, they allege that Defendants acted purposefully to vex, injure, and annoy Plaintiffs and to force them to vacate the property or to accept substandard premises without further complaint. (Compl., ¶ 27.) Those allegations describe willful conduct directed at these tenants.

Article 5.3 took effect on August 6, 2021. An enactment that carries no express retroactivity provision applies prospectively unless it is “very clear from extrinsic sources that the Legislature or the drafters, in fact, intended a retroactive application.” (*Evangelatos v. Superior Court* (1988) 44 Cal.3d 1188, 1209.) Conduct before that date therefore cannot violate article 5.3.

However, Plaintiffs allege conditions and refusals to repair over at least the last four years of tenancies that continued well past 2021. The ordinance's effective date narrows the period the seventh cause of action covers without defeating the cause of action itself. A demurrer does not lie to a part of it. (*PH II, Inc.*, supra, 33 Cal.App.4th at p. 1682.)

Accordingly, the Demurrer to the seventh cause of action is overruled.

CONCLUSION

The Demurrer is overruled.